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File No.: EXP202304525

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On April 11, 2023, a complaint was filed with the Spanish Agency for Data Protection.

The reasons for the complaint are as follows:

The complainant reports being a victim of a case of sextortion: someone is blackmailing him, demanding payment of a sum of money in exchange for not publishing a video in which he appears masturbating. The video in question has already been published, at least, on the website ***URL.1, where he is identified as "A.A.A." and among the tags used, it states "A.A.A. is a pervert and pedophile who masturbates in front of a two-year-old girl."

The publication URL is ***URL.2 and the profile of the person who uploaded the video on that page is "****PROFILE.1". He has written to the website, but they do not respond.

SECOND: On April 11, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

THIRD: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

On April 11, 2023, this Agency obtained the following evidence:

1. Screenshot of the user "****PROFILE.1" with URL ***URL.3.
2. The URL ***URL.2 contains a video.
3. The complainant's video with sexual content where what appears to be a video call is taking place, with the following people connected: A.A.A. and B.B.B.

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On April 12, 2023, it was verified that both the video and the user, locatable at the previously specified URLs, are no longer accessible.

The person who registered the domain ***URL.1 is C.C.C.

On November 2, 2023, a request for information was sent to C.C.C. by international postal mail. The delivery is confirmed by the postal service dated November 18, 2023. No response has been received.

On January 22, 2024, a request for information was sent to META PLATFORMS IRELAND LIMITED by international postal mail. The notification is in "In progress" status and no response has been received.

On January 30, 2024, an email was received from ***EMAIL.1 with information that the user "****PROFILE.1" was created on their platform on April 8, 2023 GMT and from the IP address ***IP.1.

On January 31, 2024, it was verified that the IP address ***IP.1, according to whois records, is located in Ivory Coast.

On February 9, 2024, META PLATFORMS IRELAND LIMITED sent the following information and statements to this agency:

1. That the reported Instagram profile is located outside the European region and not in Spain, therefore they are not responsible.

LEGAL GROUNDS

I

Competence

In accordance with the functions that Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) assigns to each control authority and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Legitimacy for processing

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The physical image of a person, pursuant to Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation.

Article 4.2 of the GDPR defines "processing" as: "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment, combination, restriction, erasure or destruction."

The processing of images that identify or make a person identifiable constitutes processing of personal data and, therefore, the person who carries it out must rely on one of the legitimizing grounds specified in Article 6 of the GDPR. In these cases, as in the case subject to complaint, the usual legitimizing ground is generally consent. It is the person who uploads the personal data and the images that can be viewed without any limitation who must demonstrate that they have that consent.

In order for such processing to be carried out lawfully, the provisions of Article 6.1 of the GDPR must be fulfilled, which states:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in paragraph f) of the first subparagraph shall not apply to processing carried out by public authorities in the performance of their tasks."

III

Conditions for Consent

In relation to the conditions for consent, Article 7 of the GDPR states:

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- "1. When the processing is based on the consent of the data subject, the controller shall be able to demonstrate that the data subject has consented to the processing of their personal data.
2. If the consent of the data subject is given in the context of a written declaration that also relates to other matters, the request for consent shall be presented in such a way that it is clearly distinguishable from the other matters, in an intelligible and easily accessible form and using clear and plain language. No part of the declaration which constitutes an infringement of this Regulation shall be binding.
3. The data subject shall have the right to withdraw their consent at any time. The withdrawal of consent shall not affect the lawfulness of processing based on consent before its withdrawal. Before giving consent, the data subject shall be informed thereof. It shall be as easy to withdraw consent as to give it.
4. When assessing whether consent has been freely given, account shall be taken, as far as possible, of whether, among other things, the performance of a contract, including the provision of a service, is conditional on consent to the processing of personal data that is not necessary for the performance of that contract."

IV

Conclusion

In order to identify the person or persons who were processing the data of the complainant included in a video, preliminary investigative actions were carried out, as established by Article 67 of the LOPDGDD, which states the following:

"1. Before adopting the decision to initiate proceedings, and once the complaint has been admitted for processing, if any, the Spanish Data Protection Agency may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances justifying the processing of the proceedings.

The Spanish Data Protection Agency shall act in any case when it is necessary to investigate processing involving mass traffic of personal data.

2. The preliminary investigative actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and shall not exceed twelve months from the date of the admission decision or from the date of the decision to initiate when the Spanish Data Protection Agency acts on its own initiative or as a result of communication received from the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law."

After conducting the investigations mentioned in the Facts, the following conclusion has been reached: The video was removed before the request for its removal.

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Information was requested by postal mail from the alleged responsible party of the platform located in ***COUNTRY.1. The notification has been delivered, but no response has been received.

Information was obtained via email from the platform ***URL.1 regarding the IP address associated with the creation of the user who published the content. This IP is located, according to the whois record, in Ivory Coast.

META responded that the reported profile is located outside the European region.

The responsible party for the publication could not be identified.

Thus, as it has not been possible to attribute responsibility for the processing in the publication of the images contained in the video, in accordance with what is indicated by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of

Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

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